

IN THE HIGH COURT OF SOUTH AFRICA
[GAUTENG DIVISION, PRETORIA / INSERT APPROPRIATE DIVISION]

CASE NUMBER: _____

In the matter between:

APPLICANT

and

FIRST RESPONDENT

SECOND RESPONDENT

THIRD RESPONDENT

NOTICE OF MOTION IN RESCISSION APPLICATION

KINDLY TAKE NOTICE THAT:

1. Application is hereby made for an order in the following terms:

PRAYERS FOR RELIEF:

1.1 That the Rules of this Honourable Court be dispensed with to the extent that they may not have been complied with in respect of form, content, and/or time periods, and that this application be heard as one of urgency in terms of the provisions of the Uniform Rules of Court.

1.2 That the order granted by this Honourable Court under case number _____ on _____ [date] ("the debt restructuring order") be and is hereby rescinded in terms of Rule 42 of the Uniform Rules of Court and/or in terms of the inherent jurisdiction of this Court.

1.3 Alternatively to prayer 1.2 above, that the debt restructuring order be varied in terms of Section 86(7)(c)(ii)(bb) of the National Credit Act 34 of 2005 to the effect that the Applicant is no longer subject to debt review.

1.4 That the Applicant's credit profile be updated to reflect that the Applicant is no longer under debt review, and that all credit bureaus be directed to remove the debt review flag/status from the Applicant's credit record within 7 (seven) days of this order being granted.

1.5 That the National Credit Regulator be directed to:

1.5.1 Update its records to reflect that the Applicant is no longer under debt review;

1.5.2 Issue a clearance certificate or confirmation of removal from debt review within 14 (fourteen) days of this order;

1.5.3 Notify all registered credit bureaus of the rescission/termination of the debt review.

1.6 That each of the Respondents, being credit providers who were parties to the debt restructuring order, be directed to:

1.6.1 Remove any debt review flag, notation, or indication from the Applicant's credit accounts;

1.6.2 Report the correct status of the Applicant's accounts to all credit bureaus;

1.6.3 Provide written confirmation of compliance to the Applicant within 14 (fourteen) days;

1.6.4 Refrain from any action that would perpetuate the debt review status.

1.7 That [IF APPLICABLE - Debt Counsellor Name], the debt counsellor who facilitated the debt review, be directed to:

1.7.1 Issue a clearance certificate in terms of Section 86(10) of the National Credit Act;

1.7.2 Notify all relevant parties of the termination of the debt review;

1.7.3 File the required forms with the National Credit Regulator.

1.8 That the costs of this application be paid by the Respondent(s) / be costs in the cause / that each party pay their own costs.

1.9 That the Applicant be granted such further and/or alternative relief as this Honourable Court deems fit.

2. LEGAL BASIS FOR RESCISSION

2.1 This application is brought in terms of:

2.1.1 Rule 42(1)(a) of the Uniform Rules of Court, which provides for rescission of an order granted in the absence of the person affected thereby;

OR

2.1.2 Rule 42(1)(b) of the Uniform Rules of Court, due to an error by the Court in granting the order;

OR

2.1.3 The common law and/or the inherent jurisdiction of this Honourable Court to rescind its own orders in the interests of justice;

OR

2.1.4 Section 86(7)(c)(ii)(bb) of the National Credit Act 34 of 2005, which provides for variation of a debt rearrangement order;

OR

2.1.5 Section 71 of the National Credit Act 34 of 2005, which provides for the court to make an order amending a previous order.

3. GROUNDS FOR RESCISSION

KINDLY TAKE NOTICE THAT the grounds upon which this application is brought are the following:

3.1 [SELECT APPLICABLE GROUNDS:]

Ground A - Fulfilment of Obligations:

The Applicant has fully complied with the terms of the debt restructuring order and has settled all debts subject to the debt review, thereby rendering the continued existence of the order unnecessary and prejudicial.

Ground B - Material Change in Circumstances:

Since the granting of the debt restructuring order, the Applicant's financial circumstances have materially and favourably changed such that the Applicant is no longer over-indebted as contemplated in Section 79 of the National Credit Act, and the continued debt review status is no longer warranted or justified.

Ground C - Error in Proceedings:

The debt restructuring order was granted in circumstances where [specify error: e.g., "the Applicant was not properly represented" / "material information was not before the Court" / "the order was granted in error"].

Ground D - Absence from Proceedings:

The debt restructuring order was granted in the absence of the Applicant or without the Applicant having full knowledge of the consequences thereof, and the Applicant has a bona fide defence and/or good grounds for seeking rescission.

Ground E - Interests of Justice:

The continued existence of the debt restructuring order operates unjustly against the Applicant and prevents the Applicant from exercising fundamental economic rights, and it is in the interests of justice that the order be rescinded.

4. SUPPORTING DOCUMENTATION

FURTHER TAKE NOTICE THAT this application is supported by:

4.1 The Founding Affidavit of the Applicant, which sets out the full factual basis for this application;

4.2 Annexures attached to the Founding Affidavit, including but not limited to:

- Copy of the original debt restructuring order;
- Proof of payment and/or settlement of debts;
- Evidence of changed financial circumstances;
- Correspondence with credit providers and/or debt counsellor;
- Current credit report showing debt review status;
- Any other relevant documentation.

5. REQUIREMENTS FOR RESCISSION

5.1 The Applicant is advised that the requirements for rescission under Rule 42 have been met, namely:

5.1.1 The Applicant has provided a reasonable explanation for the default (if applicable);

5.1.2 The application has been made bona fide and not for the purposes of delay;

5.1.3 The application has been made with reasonable promptness in the circumstances;

5.1.4 The Applicant has prospects of success if the rescission is granted;

5.1.5 There is no material prejudice to the Respondents.

6. URGENCY (IF APPLICABLE)

6.1 This application is brought as a matter of urgency for the following reasons:

6.1.1 The continued debt review status causes ongoing and irreparable harm to the Applicant's economic rights and creditworthiness;

6.1.2 The Applicant requires immediate access to credit facilities for [specify purpose: e.g., "essential vehicle finance" / "business opportunities" / "housing purposes"];

6.1.3 Delay in obtaining relief will result in [specify consequences];

6.1.4 The interests of justice require expeditious resolution of this matter.

6.2 The Applicant accordingly seeks condonation for any non-compliance with the Rules regarding time periods and seeks to have this matter enrolled on the urgent court roll.

7. NOTICE TO RESPONDENTS

FURTHER TAKE NOTICE THAT:

7.1 In the event that any Respondent intends to oppose this application, they are required to:

7.1.1 Deliver a notice of intention to oppose within 10 (ten) court days of service of this Notice of Motion; and

7.1.2 Deliver an Answering Affidavit within 15 (fifteen) court days of delivery of the notice of intention to oppose.

7.2 [FOR URGENT APPLICATIONS:]

In light of the urgency of this matter, any Respondent intending to oppose must deliver their notice of intention to oppose and Answering Affidavit by _____ [date and time], failing which the matter will proceed as unopposed.

7.3 If any Respondent fails to deliver the required documents within the stipulated time periods, the Applicant will proceed to have the matter set down for hearing on the unopposed roll, and judgment may be granted in the absence of such Respondent.

8. SERVICE OF DOCUMENTS

8.1 Service of this Notice of Motion and all supporting documents will be effected upon:

8.1.1 All credit providers who were parties to the original debt restructuring proceedings;

8.1.2 The debt counsellor (if applicable);

8.1.3 The National Credit Regulator;

8.1.4 Any other affected parties.

8.2 Service will be effected by [specify method: e.g., "sheriff of the court" / "registered mail" / "email to attorneys of record"].

9. ADDRESS FOR SERVICE OF DOCUMENTS

The Applicant nominates the following address for the service of all documents in this matter:

PHYSICAL ADDRESS: _____

POSTAL ADDRESS: _____

FAX NUMBER: _____

EMAIL ADDRESS: _____

ATTORNEY: _____

(Name and surname)

ATTORNEY'S FIRM: _____

REFERENCE: _____

10. EXPLANATION FOR DELAY (IF APPLICABLE)

10.1 [If there has been any delay in bringing this application:] The Applicant provides the following explanation for any delay in bringing this rescission application:

10.2 [Explain reasons for delay, e.g., "The Applicant only became aware of the full implications of the debt review status when..." / "The Applicant attempted to resolve the matter informally..." / "The Applicant was under the impression that the debt counsellor would automatically remove the status upon completion..."]

10.3 The Applicant respectfully submits that any delay is reasonable in the circumstances and should not preclude the granting of the relief sought.

11. CONSTITUTIONAL CONSIDERATIONS

11.1 This application engages the Applicant's constitutional rights, including:

11.1.1 The right to dignity (Section 10 of the Constitution);

11.1.2 The right to freedom of trade, occupation, and profession (Section 22 of the Constitution);

11.1.3 The right to economic participation and access to the economy.

11.2 While the original debt restructuring order served a legitimate purpose under the National Credit Act, its continued application beyond necessity constitutes a disproportionate limitation on these constitutional rights.

11.3 The relief sought will vindicate the Applicant's constitutional rights while maintaining the integrity of the debt review system.

12. THIS HONOURABLE COURT IS RESPECTFULLY REQUESTED TO:

12.1 Consider the application on an urgent basis (if applicable);

12.2 Grant the relief sought in the Notice of Motion;

12.3 Make such order as to costs as this Court deems just and equitable.

DATED AT _____ ON THIS _____ DAY OF _____ 20____

APPLICANT'S ATTORNEY

[Name of Attorney]

[Law Firm]

[Physical Address]

[Tel:]

[Fax:]

[Email:]

[Ref:]

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

[Address]

AND TO: [FIRST RESPONDENT NAME]

[Address]

[FAX/EMAIL]

AND TO: [SECOND RESPONDENT NAME]

[Address]

[FAX/EMAIL]

AND TO: [THIRD RESPONDENT NAME]

[Address]

[FAX/EMAIL]

AND TO: THE NATIONAL CREDIT REGULATOR

127 15th Road

Randjespark

Midrand

1685

Email: complaints@ncr.org.za

AND TO: [IF APPLICABLE: DEBT COUNSELLOR NAME]

[Address]

[Email]